

CENTRE-STATE AND INTER-STATE RELATIONS

One constitutional rail: competence -> administration -> finance -> coordination -> reform

ARTS 245-263 ARTS 266-293 ARTS 301-307 52 MCQs 11 PYQs 6 MAINS MODELS

01 FOUR-DIMENSIONAL CONSTITUTIONAL MAP

LEGISLATIVE

Articles 245-255
Territory, Lists, groups, conflict

ADMINISTRATIVE

Articles 256-263 + 312
Directions, enforcement, services, agencies

FINANCIAL

Articles 266-293
Funds, loans, grants, GST, borrowing

INTER-STATE

Articles 131-261-263, 301-307
Disputes, recognition, councils, market

02 TERRITORY, LISTS, GST AND RESIDUE

1 | TERRITORY

Article 285
Parliament / State reach

2 | FIELD

Article 246
Three Lists

3 | GST

Article 286A
Special simultaneous power

4 | COURTS

Article 247
Additional courts

5 | RESIDUE

Article 248 + Entry 97
Only after Lists 5/8/9

CONTROL: TERRITORY AND SUBJECT ARE SEPARATE; RESIDUE IS GENUINELY RESIDUAL.

03 PARLIAMENT IN THE STATE FIELD

249 | NATIONAL INTEREST

Rajya Sabha 2/3 prevent-voting
+/- 1 year; renewable; 6-month tail

250 | NATIONAL EMERGENCY

Temporary State-field power
& month tail

252 | STATE REQUEST

2+ State resolutions
Later adoption; Parliament amends/repels

253 | INTERNATIONAL

Treaty, agreement, convention or international decision

156-157 | BREAKDOWN

Parliamentary State power
Law continuous until altered

ARTICLE 251

Temporary Union priority for 249/250 inconsistency

04 DOCTRINES, REPUGNANCY AND STATE BILLS

TRUE CHARACTER

Fid and substance

COMPETENCE

Territorial reach
Incidental encroachment
Colourable legislation

IMPLEMENTATION

Designated legal entity; parent Act
Essential policy retained

COEXISTENCE

Harmonious construction

CONFLICT

Article 254
Assent exception
Later Union overrule

PROCEDURE

Articles 200/201/205
304(b) previous sanction

05 ADMINISTRATIVE COOPERATION AND AGENCIES

256 | COMPLIANCE

State implements parliamentary/applicable law; Union may direct

257 | NON-IMPEDIMENT

Communications, railway protection and cost rules

258 / 258A

Regional arrangements with the other government's consent

259 / 260

259 sanctioned; 260 agreed functions outside India

312 | SERVICES

Rajya Sabha trigger; IAS, IPS, Indian Forest Service

DOPE | CBI

Section 6 State consent; Articles 32/226 court exception

06 DUTY, BREAKDOWN AND JUDICIAL STATUS

ARTICLE 315

Union duty: protect States and ensure constitutional government

ARTICLE 345

Non-compliance may support an inference, never automatic

ARTICLE 354

Separate exceptional remedy; Parliament + judicial review

ARTICLE 357

Exercise of State legislative power and continuation rule

CASE CONTROL

S.R. Bommai: Basic Structure, review, floor test
West Bengal 2022: preliminary ruling only

07 FINANCIAL CONSTITUTION

266-267

Consolidated + Contingency funds

268

Union levy; State collection

269 / 269A

Assignment / GST apportionment

270

Disabling pool distribution

271

Union surcharge; GST excluded

273 / 274

Historical grant / BR recommendation

275

Constitutional grants

276

Profession tax +/- Rs 2/300

279

Net proceeds; CAG certificate

280-281

Finance Commission; laying

282

Any public purpose grants

282-293

Union / State borrowing

08 FISCAL EVOLUTION, IMBALANCE AND BORROWING

EVOLUTION

Plan-era Article 302 deviation
-> 1971 + FC deviation
-> GST shared rule

HORIZONTAL WEIGHTS

Income distance 42.5
Population 17.5
Four criteria at 10 each

TWO IMBALANCES

Vertical: levels
Horizontal: States
Never confuse the two

AUTONOMY PRESSURES

Cesses / surcharges
CG conditions
Transfer of money

10FC STATUS

Report 17 Nov 2025
Assent 2026-1
41% divisible pool

KERALA 2024

Interim relief denied
Pre-judicial reference
Matters not settled

09 GST AS NEGOTIATED FISCAL FEDERALISM

ARTICLE 246A

Simultaneous GST law-making
Parliament exclusive inter-State

ARTICLE 269A

Inter-State long-distance
Apportionment

ARTICLE 279A

Council recommendation
Quorum 1/2
Decision list-weighted

MOGIT MINERALS

Preference, not binding primary law
Collaborative (strategic)
Non-binding in - irrelevant

10 WATER DISPUTES, ARTICLE 131 AND COUNCILS

LEGAL-RIGHT DISPUTE

Article 131
Binding Supreme Court adjudication
Subject to exclusions

WATER-SPECIFIC ROUTE

Article 262 + 1956 Act
Tribunal + section 11 bar

DEVELOPMENT ADVICE

Inter-Board Act, 1956
Advisory basin mechanism

POLICY COORDINATION

Article 263 + 1996 Order
Inter-State Council advice

REGIONAL FORUMS

Five statutory Zonal Councils
NSC under separate 1971 Act

LEGAL CONTINUITY

Article 261
Procedural + civil judgment execution

11 COMMON MARKET, COMMISSIONS AND CLOSE DISTINCTIONS

COMMON MARKET

301: Freedom; 302: public interest; 303: preference bar
304(a): tax equality; 304(b): sanctioned restriction

RAJAMANNAR

Fair-trading State autonomy programme

JUDICIAL CONTROL

Justice Swamy, 2016
No tax-free market
Discrimination is central

SARKARIA

Strong Union, no over-centralisation
25: last-resort; consultations; ISC

FIRST ABC

ISC: delegation and State resources

PUNCHHI

Updated Governor: council, fiscal and dispute proposals

12 ANSWER SPINE AND BALANCED REFORM

ASSENT / DIRECTIONS

Prompt reasons + brief-founded power

CESSSES / TRANSFERS

Transparent base + predictable release

GST

Data + deliberation + dispute mechanism

BORROWINGS

Objective risk rules + reasons + adjudication

RIVER WATER

Shared data + timely assent + implementation

INTER-STATE COUNCIL

Regular agenda + published follow-up

QUALIFIED VERDICT: UNION CAPACITY GAINS LEGITIMACY THROUGH STATE PARTICIPATION, FISCAL FAIRNESS AND REASONED RESTRAINT.